

Rule 26 Report Disclosures

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

United States District Court for the Western District of North Carolina

Civil Action No. SYN-WDNC-24-CV-0520

Served and filed February 28, 2025

Blue Ember Biologics, LLC and Granite Heron Logistics, Inc. exchange the following initial report disclosures based on information reasonably available. A person's identification does not mean that every listed subject is admissible, undisputed, or within that person's personal knowledge. Each side may supplement as discovery proceeds.

The action concerns Granite Heron's September 12, 2024 custody of validation lot BE214-VL-2409A, the CTX-9 temperature excursion, Blue Ember's rejection decision, replacement work, the October 2 Cobalt Finch capacity offer, and alleged damages. The parties have preserved source device exports and will use portable-document renderings to make the data reviewable without claiming interpretation beyond authenticated functions.

The exchange is organized by persons, records, computations, insurance, and preservation. Privileged material and attorney work product are withheld. Production or identification does not waive an authenticity, foundation, hearsay, relevance, proportionality, confidentiality, or expert-opinion objection.

The disclosures use descriptive record names rather than future exhibit numbers. That convention keeps the exchange tied to the actual business sources while allowing the parties to assign trial designations after authenticity and scope issues are resolved.

Blue Ember's identified persons

Dr. Mira Solis, Blue Ember's Chief Operating Officer and designated organizational witness, may testify about the BE-214 program, shipment instructions, contracts, intended validation use, quarantine and rejection, facility selection, schedule decisions, the Cobalt Finch proposal, Aurora Quay campaign, and claimed loss. She is located through Holt Bell PLLC and should not be contacted directly about the litigation.

Blue Ember identifies appropriate custodians at Solstice Gate Analytics concerning lot production, packaging, logger activation, certificate COC-BE214-091224, and origin handoff. It identifies receiving and quality personnel at 1847 Cinder Ridge Parkway concerning delivery at 15:26, data download, deviation BE-QA-DEV-2024-0912, testing, and the September 16 disposition.

Dr. Nia Calder of Cobalt Finch Bioprocessing may have information about the October 2 capacity offer, December 2 slot, acceptance deadline, proposed technical-transfer tasks, suite capability, estimated 300,000-dollar incremental cost, and conditions remaining open. Blue Ember does not represent that Calder agrees with Blue Ember's reasonableness position.

Blue Ember expects Kellan Brooks, CPA/CFF, to offer retained damages opinions after the expert deadline. His anticipated work will address direct cost, replacement expense, delay computation, supporting records, and alternative scenarios. His formal report, sources, compensation, qualifications, and testimony history will be disclosed separately.

Granite Heron's identified persons

Adrian Locke, Granite Heron's Vice President for Controlled Transportation and organizational designee, may testify about agreement formation, carrier systems, service acceptance, investigation, claim response, alleged contractual limitations, and the company's mitigation position. Counsel will coordinate his availability through Mercer Webb PLLC.

Tess Holloway, Transport Operations Manager at the Fletcher facility, may testify about training, equipment readiness, staging practice, dispatch queues, power transition, alarms, corrective action, and the chronology associated with tractor GH-4821 and trailer TR-7714. She has knowledge of records created by operations personnel and the limits of any reconstruction.

Granite Heron identifies the assigned driver, dispatch personnel, maintenance custodian, billing custodian, and data-system custodian through its written production. Those individuals may address custody at 11:20, departure at 11:47, the Fletcher hold, refrigeration restoration, departure, delivery at 15:26, and preservation of source records. Identification does not concede fault or a particular scientific effect.

Granite Heron expects Dr. Elodie Park to offer a retained mitigation and economic-loss opinion. Her planned analysis will address alternative capacity, qualification cost, schedule effect, avoidable delay, net deduction, and uncertainty in Blue Ember's model. Her signed report and required supporting disclosures will follow under the scheduling order.

Records identified by Blue Ember

Blue Ember identifies the master agreement, quality agreement, statement of work, purchase order, release specification, rate confirmation, certificate of conformance, custody record, CTX-9 output, receiving materials, deviation file, assay materials, and lot-disposition record. The integrated writings include BE-GHL-MLS-2023-1101, QA-BE-GHL-017, SOW-BE214-VAL-04, BE-PO-240819-2147, and BE214-RS-03, Revision 3.

Program records include the replacement campaign schedule, invoices, cost ledger, budgets, milestone calendars, Aurora Quay reservation, change-control materials, and communications about technical options. Blue Ember will produce nonprivileged responsive documents subject to an agreed protective order for proprietary scientific and financial information.

Communications with Cobalt Finch include the October 2 offer, October 4 deadline, follow-up questions, proposed scope, facility information, and Blue Ember's internal nonprivileged decision record. Blue Ember will not treat a capacity email as proof that qualification was complete; it will produce the record from which feasibility can be assessed.

Financial sources include general-ledger extracts, vendor invoices, project codes, forecasts predating the shipment, and schedules used to calculate 1.35 million dollars of lot cost, 850,000 dollars of replacement expense, and 2 million dollars of alleged delay loss.

Records identified by Granite Heron

Granite Heron identifies its accepted shipment file, pretrip inspection, equipment assignments, driver custody entries, route and stop record, controller output, alarm messages, dispatch communications, delivery receipt, invoice, deviation investigation, training records, maintenance materials, and corrective-action evidence. Responsive records will preserve their original time basis where available.

The carrier identifies documents relating to the Fletcher power transition and the active response profile used for shipment GHL-ASH-091224-087. It will identify any missing item and the reason for unavailability rather than create an unmarked reconstruction. A later narrative will distinguish source fact, witness recollection, and inference.

Granite Heron also identifies claim correspondence, Blue Ember's rejection notice, requests for scientific support, assay summaries supplied to it, and communications regarding claimed damages. It seeks Blue Ember's contemporaneous alternative-capacity analysis and does not concede the stated loss by producing the correspondence.

Mitigation sources include Cobalt Finch's offer and capability materials, proposed transfer tasks, expected December campaign sequence, estimated incremental expense, and schedule comparisons with Aurora Quay. Granite Heron expects to rely on Blue Ember and third-party records as well as its own analysis. Any portable report of logger data will remain traceable to the original CTX-9 export.

Damages and offset computations

Blue Ember's current gross computation is 4.2 million dollars. It allocates 1.35 million to cost embodied in the rejected validation lot, 850,000 to replacement production and directly associated services, and 2 million to a defined period of delay-related contribution and milestone loss. It reserves refinement based on discovery but will not add a new category without timely supplementation.

Granite Heron disputes the foundation, causation, certainty, foreseeability, and contractual recoverability of each component. For mitigation, it presently calculates that the December 2 Cobalt Finch slot could have prevented 1.8 million dollars of the claimed delay. It subtracts an estimated 300,000 dollars for transfer and qualification, producing a proposed net deduction of 1.5 million dollars.

Granite Heron's offset model is alternative. It does not admit the gross 4.2 million dollars or concede that all remaining amounts are proper. Blue Ember disputes that the slot was a certain, qualified substitute and disputes the claimed avoidance period.

Both parties will produce calculation files in a reasonably usable form, identify assumptions and source records, and avoid double counting. Insurance, credits, reusable work, and ordinary costs will be addressed to the extent evidence shows they compensate or reduce the same asserted loss.

Insurance, preservation, and stored information

Granite Heron will produce applicable cargo and liability declarations subject to confidentiality protections. Disclosure of a policy does not establish coverage, limits, breach, causation, or damages. Blue Ember will identify any reimbursement, credit, or insurance payment received for the same expense, while reserving legal positions concerning collateral-source treatment.

The parties have issued preservation instructions covering contracts, emails, messages, calendars, device exports, refrigeration records, custody forms, quality and laboratory records, financial sources, invoices, forecasts, facility materials, and alternative-capacity communications. Custodians include Solis, Locke, Holloway, relevant operations staff, quality personnel, and financial analysts.

Source logger and controller files will be retained in ordinary format. Rendered graphs or tables may aid review, but the producing party must maintain traceability and identify the software or process used. No party will characterize a generated page as raw machine output if human selection or annotation materially shaped it.

Privileged legal communications are outside the substantive production. A privilege log will identify withheld responsive items as required. The parties will confer about inaccessible systems, proprietary laboratory content, and third-party consent before seeking court intervention.

Reservations, supplementation, and certification

These disclosures reflect a developing record. Fact discovery, third-party responses, laboratory review, expert work, and depositions may reveal additional witnesses or documents. Each party will supplement in a timely manner and will not use supplementation to evade the scheduling order or surprise the opposing side.

Blue Ember is represented by Maya Holt and Jonas Bell of Holt Bell PLLC. Granite Heron is represented by Eli Mercer and Tara Webb of Mercer Webb PLLC. Counsel certify that they conferred about the categories, made a reasonable inquiry, and served the exchange electronically on February 28, 2025.

The parties preserve all proper objections. Listing a subject does not turn counsel's legal theory into discoverable fact, and producing a record does not agree with an opposing interpretation. The disclosures are signed for this fictional exercise and contain no real personal contact information.

For Blue Ember Biologics, LLC

Maya Holt and Jonas Bell, exercise counsel

For Granite Heron Logistics, Inc.

Eli Mercer and Tara Webb, exercise counsel

Dated: February 28, 2025. All entities, witnesses, facilities, addresses, identifiers, and events are invented solely for the training record.